

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Justin Huang	Team: Squad #10	CCRB Case #: 202205032	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 08/02/2022 9:30 AM, Tuesday, 08/02/2022 10:00 AM	Location of Incident: § 87(2)(b) in Brooklyn (across the street).	18 Mo. SOL 2/2/2024	Precinct: 75		
Date/Time CV Reported Tue, 08/02/2022 9:54 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Tue, 08/02/2022 9:54 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. PO Antonio Ortiz	06625	959016	075 PCT
2. PO John Plumitallo	16755	961108	075 PCT
3. SGT Richard Kern	02095	936859	075 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Brion Shibetti	23606	931213	075 PCT

Officer(s)	Allegation	Investigator Recommendation
A . PO Antonio Ortiz	Abuse: At § 87(2)(b) in Brooklyn, Police Officer Antonio Ortiz damaged § 87(2)(b) property.	A . Unable to Determine
B . PO John Plumitallo	Abuse: At § 87(2)(b) in Brooklyn, Police Officer John Plumitallo damaged § 87(2)(b) property.	B . Unable to Determine
C . PO Antonio Ortiz	Abuse: At § 87(2)(b) in Brooklyn, Police Officer Antonio Ortiz searched the vehicle in which § 87(2)(b) was an occupant.	C . Substantiated
D . PO John Plumitallo	Abuse: At § 87(2)(b) in Brooklyn, Police Officer John Plumitallo searched the vehicle in which § 87(2)(b) was an occupant.	D . Unable to Determine
E . PO Antonio Ortiz	Abuse: At § 87(2)(b) in Brooklyn, Police Officer Antonio Ortiz refused to provide his shield number to § 87(2)(b)	E . Unfounded
F . PO John Plumitallo	Abuse: At § 87(2)(b) in Brooklyn, Police Officer John Plumitallo refused to provide his shield number to § 87(2)(b)	F . Unfounded
G . SGT Richard Kern	Abuse: At the 75th Precinct Station House, Sergeant Richard Kern did not process § 87(2)(b) complaint regarding officers.	G . Unable to Determine
§ 87(2)(g), § 87(4-b)	§ 87(2)(b)	§ 87(2)(b)

Officer(s)	Allegation	Investigator Recommendation
§ 87(2)(g), § 87(4-b)	[REDACTED]	[REDACTED]
§ 87(2)(g), § 87(4-b)	[REDACTED]	[REDACTED]

Case Summary

On August 2, 2022, § 87(2)(b) filed this complaint with the CCRB over the phone.

On August 2, 2022, at approximately 9:30AM, Police Officers Antonio Ortiz and John Plumitallo of the 75th Precinct responded to a 311 complaint about a vehicle blocking a fire hydrant near § 87(2)(b) in Brooklyn. Upon arrival, they noticed that the vehicle's vehicle identification number (VIN) was obscured and that it did not have any license plates. PO Ortiz and PO Plumitallo allegedly pulled down the front driver side and passenger side windows (**Allegations A and B: Abuse of Authority – Property Damaged, Unable to Determine**) and searched the vehicle (**Allegation C: Abuse of Authority – Vehicle Search, Substantiated**) (**Allegation D: Abuse of Authority – Vehicle Search, Unable to Determine**). § 87(2)(b) walked outside of his house and along with his father, § 87(2)(b) and his neighbor, § 87(2)(b) approached the officers and asked why they searched his car. PO Ortiz and PO Plumitallo allegedly did not provide their shield numbers to § 87(2)(b) when he asked for them (**Allegations E and F: Abuse of Authority – Failure to Provide Shield Number, Unfounded**).

That same day, at approximately 10:00AM, § 87(2)(b) went to the 75th Precinct station house in order to file a complaint against PO Ortiz and PO Plumitallo. While waiting at the front desk, § 87(2)(b) spoke with Sergeant Richard Kern of the 75th Precinct, who allegedly refused to process § 87(2)(b) complaint (**Allegation G: Abuse of Authority – Refusal to Process Civilian Complaint, Unable to Determine**).

§ 87(2)(g), § 87(4-b)

§ 87(2)(b) was issued a summons for obstruction of VIN (**BR01**).

The CCRB received BWC footage and station house footage from the NYPD that documented the incident (**BR02-04**).

Findings and Recommendations

Allegation (A) Abuse of Authority: At § 87(2)(b) in Brooklyn, Police Officer Antonio Ortiz damaged § 87(2)(b) property.

Allegation (B) Abuse of Authority: At § 87(2)(b) in Brooklyn, Police Officer John Plumitallo damaged § 87(2)(b) property.

Allegation (C) Abuse of Authority: Abuse of Authority: At § 87(2)(b) in Brooklyn, Police Officer Antonio Ortiz searched § 87(2)(b) vehicle.

Allegation (D) Abuse of Authority: At § 87(2)(b) in Brooklyn, Police Officer John Plumitallo searched the vehicle in which § 87(2)(b) vehicle.

§ 87(2)(b) (**BR05**) stated that he was with § 87(2)(b) and a few of his neighbors while he removed the rear license plate of his vehicle to install a rear-view camera. § 87(2)(b) drove a 2005 Pontiac Grand-Am with a Pennsylvania plate (just one plate in the back) with no alterations. The vehicle had two stickers on the front windshield that contained the vehicle's VIN. After he took the plate off, he realized that he did not have the right tools, so he took his license plate and went back inside the house to get the proper tools. Approximately ten minutes later, § 87(2)(b) called him and said that there were police officers going through his vehicle.

When § 87(2)(b) returned outside, he saw that the front passenger and back passenger doors were open, that the windows on both doors had been rolled down, and that PO Plumitallo and PO Ortiz were in his vehicle. PO Plumitallo told § 87(2)(b) that the windows had been down, but § 87(2)(b) and a neighbor claimed that the windows had been rolled up. § 87(2)(b) reattached his license plate to the car, then asked the officers why they were searching his car. PO Plumitallo stated that the VIN was not visible because there were papers blocking it. § 87(2)(b) replied that the VIN was indeed visible on his windshield, and that this was not a reason to access someone else's car without permission.

PO Plumitallo and § 87(2)(b) then got into a back-and-forth, with § 87(2)(b) telling PO Plumitallo that he was not allowed to enter and search a vehicle without consent and PO Plumitallo saying that officers are allowed to do so. § 87(2)(b) believed that the officers pushed down the windows manually with their hands to unlock the car door. After the incident, § 87(2)(b) tried to roll up the windows, but the windows would not rise.

§ 87(2)(b) (BR06) stated that PO Plumitallo and PO Ortiz opened the vehicle doors upon arriving at the location but did not remember if officers simply opened the vehicle doors or if they gained access via one of the vehicle's partially open windows. § 87(2)(b) got out of her car and told § 87(2)(b) who had stepped outside of § 87(2)(b) house, that the police were going through his son's car. § 87(2)(b) immediately went to get his son. § 87(2)(b) walked outside of the house along with § 87(2)(b) exited her vehicle and walked over as well in order to calm § 87(2)(b) down and prevent the situation from escalating further. By the time § 87(2)(b) and § 87(2)(b) walked over to the car, § 87(2)(b) saw that PO Ortiz had conducted a search of the vehicle. She came to this conclusion because when the officers first arrived, there were several papers on the dashboard of § 87(2)(b) vehicle, but by the time § 87(2)(b) walked outside, the papers had been moved to the driver's seat of the vehicle. § 87(2)(b) did not remember if she saw PO Ortiz go inside of the vehicle.

§ 87(2)(b) (BR07) stated that he did not witness the officers' actions to access or search the vehicle because he was inside the house along with his son.

BWC footage from PO Plumitallo and PO Ortiz (BR03-04) does not show the two officers interacting with the windows or doors. At 00:01 in PO Plumitallo's BWC, the front and rear driver side doors are closed, and the windows are closed. At 00:16 in PO Ortiz's BWC, the front and rear passenger side doors are closed, with the rear passenger window fully closed and the front passenger window open approximately two inches. The officers do not open the doors, interact with the windows/window mechanism, enter or search the vehicle for the duration of the footage. However, the VIN is visible on the driver's side of the vehicle.

PO Ortiz and PO Plumitallo (BR08-09) both stated that when they arrived on scene and inspected the vehicle, the windows were all closed except for the front passenger side window, which was partially open. The vehicle did not have any license plates and had several papers on the dashboard that partially blocked the vehicle's VIN. Both officers denied manually pulling down the windows. Both officers explained that PO Ortiz managed to access the vehicle by sticking his asp through the opening in the front passenger window and pressing the unlocking button on the door. Afterwards, PO Ortiz went over to the driver's side door, opened the door, and reached inside to move a piece of paper that was blocking the VIN. PO Plumitallo denied going into the vehicle and moving any items around, and PO Ortiz did not see PO Plumitallo do so. Both officers tried to call in a rotation tow to have the vehicle towed before PO Ortiz went into the vehicle. PO Ortiz stated that it would be necessary to tow the vehicle in order to find out who the vehicle belonged to, or if the vehicle

was used in a crime/involved in any potential case. PO Plumitallo stated that the vehicle would have been towed to find out the VIN and determine vehicle ownership. Both officers said that the entire incident lasted between 10 to 20 minutes.

PO Ortiz and PO Plumitallo did not activate their BWCs when they arrived on scene, and only turned them on once they encountered § 87(2)(b) § 87(2)(g)

Vehicle and Traffic Law Section 1224 (BR10) states that “a motor vehicle shall be deemed an abandoned vehicle if left unattended with no number plates affixed thereto, for more than six hours on any highway or other public place.”

NYPD Patrol Guide procedure 218-21 (BR11) states that once a vehicle is identified as apparently abandoned (as defined in Vehicle and Traffic Law Section 1224), officers must find out the VIN of the vehicle. If necessary, officers are to request assistance from another member of command trained in vehicle identification or the Auto Crime Unit if the VIN is missing or illegible.

NYPD Patrol Guide procedure 209-07 (BR12) states that when issuing parking summonses to vehicles identified as abandoned and eligible for the rotation tow program, officers will write up summonses for parking violations, then affix them on the windshield of the vehicle.

§ 87(2)(g)

It is therefore recommended that **Allegations A and B** be closed as **Unable to Determine**.

PO Ortiz and PO Plumitallo stated that they intended to call in a rotation tow for § 87(2)(b) vehicle. While they stated that the vehicle had no license plates, they did not see this vehicle in said condition for more than six hours, nor did they request any assistance when trying to ascertain the vehicle's VIN. § 87(2)(g)

It is recommended that **Allegation C** be **Substantiated**. § 87(2)(g)

It is therefore recommended that **Allegation D** be closed as **Unable to Determine**.

Allegation (E) Abuse of Authority: At § 87(2)(b) in Brooklyn, Police Officer Antonio Ortiz refused to provide his shield number to § 87(2)(b)

Allegation (F) Abuse of Authority: At § 87(2)(b) in Brooklyn, Police Officer John Plumitallo refused to provide his shield number to § 87(2)(b)

It is undisputed that PO Ortiz and PO Plumitallo provided their business cards to § 87(2)(b)

(BR05) asked PO Ortiz and PO Plumitallo for their badge numbers as soon as he was outside and continued to ask throughout the incident, but PO Ortiz and PO Plumitallo did not provide them and said that they would provide their information when they were ready. As the incident ended, and PO Ortiz and PO Plumitallo began turning away, § 87(2)(b) asked once again for their badge numbers. In response, PO Plumitallo and PO Ortiz provided their business cards to § 87(2)(b). Both officers then got into their vehicle and drove away.

BWC footage from PO Ortiz and PO Plumitallo (BR03-04) shows that at 13:20 and 13:18, respectively, PO Ortiz hands his business card to a male individual who witnessed the incident, who then takes the card and walks back to § 87(2)(b) and hands it to him. PO Plumitallo hands his business card to § 87(2)(b) who hands it to § 87(2)(b) who in turn gives it to § 87(2)(b).

PO Ortiz (BR08) stated that he kept his business cards in his backpack, which was located in the backseat of their patrol vehicle. PO Ortiz did not provide his business card to § 87(2)(b) initially because he and PO Plumitallo were still conducting their investigation, and PO Ortiz did not want to leave PO Plumitallo due to the § 87(2)(b) demeanor and the amount of people gathered around them. PO Ortiz provided his card to § 87(2)(b) after the incident was over, and explained that his card contained his name, shield number, and command. PO Ortiz also wrote down the precinct phone number.

PO Plumitallo (BR09) stated that he did not initially provide his card to § 87(2)(b) because § 87(2)(b) was irate and kept opening his car doors, which led PO Plumitallo to be concerned for his safety and PO Ortiz's safety. After the incident was over, PO Plumitallo provided his business card to § 87(2)(b) who passed it to § 87(2)(b). PO Plumitallo stated that his card contained his name, rank and shield number.

Officer statements and BWC footage show that both officers provided their names and shield numbers to § 87(2)(b) via their business cards, and § 87(2)(b) confirmed in his statement that he had received business cards from both officers. § 87(2)(g)

§ 87(2)(b) It is therefore recommended that **Allegations E and F** be closed as **Unfounded**.

Allegation (G) Abuse of Authority: At the 75th Precinct Station House, Sergeant Richard Kern did not process § 87(2)(b) complaint regarding officers.

§ 87(2)(b) (BR05) stated that after the incident, he went to the 75th Precinct station house in order to file a complaint against PO Plumitallo and PO Ortiz. While § 87(2)(b) was waiting at the front desk, PO Plumitallo walked toward him and asked § 87(2)(b) if he was looking for him. § 87(2)(b) replied that he was looking for PO Plumitallo's supervisor. PO Plumitallo walked away from § 87(2)(b). A few minutes later, an officer stepped out and asked § 87(2)(b) what the problem was. § 87(2)(b) told him about the incident. The officer replied that there was nothing they could do and for § 87(2)(b) to fight the ticket in court or pay the fine. § 87(2)(b) also told the officer that he wanted to file a complaint against PO Plumitallo and PO Ortiz. The officer stated that there was nothing he could do and did not give § 87(2)(b) any way to file a complaint. § 87(2)(b) estimated that his conversation lasted five minutes. § 87(2)(b) then left the station house and went home. § 87(2)(b) described the officer as a white/Hispanic male in uniform, approximately five feet seven or eight inches tall, with brown hair.

Station house footage from the 75th Precinct station house (BR02) shows that at 10:48, PO Plumitallo walks toward the front desk and speaks to someone behind the desk (who is off-screen). At 10:49, a sergeant, based on the chevrons on the officer's left arm, walks toward the front door while PO Plumitallo looks on and then walks away.

A review of the 75th Precinct roll call shows that Sgt. Kern was the assigned desk sergeant on the day of the incident (BR13).

Sgt. Kern (BR14) stated that he walked outside of the station house and spoke with § 87(2)(b) after PO Plumitallo informed him of § 87(2)(b) desire to speak with a supervisor. § 87(2)(b) complained about PO Plumitallo and PO Ortiz's actions and requested that the summons be dismissed, but Sgt. Kern replied that he did not have the authority to do that. Sgt. Kern stated that § 87(2)(b) needed to go to court in order to dispute the summons. At some point during the conversation, Sgt. Kern offered to help § 87(2)(b) file a complaint at the station house, but § 87(2)(b) stated that he already filed the complaint with CCRB. § 87(2)(b) made no further requests and left the station house. No other officer was involved in the interaction between § 87(2)(b) and Sgt. Kern. Sgt. Kern did not remember who he worked with that day, or who the telephone switchboard operator was.

PO Ortiz (BR08) stated that Police Officer Brion Shibetti was the assigned telephone switchboard operator that day. The 75th Precinct roll call lists PO Shibetti as being assigned an administrative role (BR13).

§ 87(2)(g)

It is therefore recommended that Allegation G be closed as **Unable to Determine**.

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR18).
- PO Ortiz has been a member of service for seven years and has been a subject in one CCRB complaint and one allegation, which was not substantiated. § 87(2)(g)
- PO Plumitallo has been a member of service for seven years and has been a subject in ten CCRB complaints and 34 allegations, of which three were substantiated:
 - Case #201906894 involved one substantiated allegation of a stop. The Board recommended Command Discipline A and the NYPD imposed Command Discipline B.
 - Case #201909062 involved one substantiated allegation of a failure to provide a RTKA card. The Board recommended Command Discipline A and the NYPD imposed no penalty.
 - Case #202003958 involved one substantiated allegation of physical force. The Board recommended Command Discipline B and the NYPD imposed no penalty.
 - § 87(2)(g)
- Sgt. Kern has been a member of service for 18 years and has been a subject in three CCRB complaints and eight allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- On May 4, 2023, a FOIL request was submitted to the Office of the Comptroller. Results will be attached upon receipt (BR19).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 10

Investigator:	<u>Justin Huang</u>	<u>Investigator Huang</u>	<u>06/20/2023</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Maura R. Roche</u>	<u>IM Maura R. Roche</u>	<u>06/20/2023</u>
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date